

WPMS/535/2021 on 5 March, 2021

Author: Sharad Kumar Sharma

Bench: Sharad Kumar Sharma

SL.	Date	Office Notes, reports, orders or proceedings	COURT'S OR JUDGES'S ORDERS
No		or directions and Registrar's order with Signatures	

WPMS No.535 of 2021
Hon'ble Sharad Kumar Sharma, J.

Mr. Shivanand Bhatt, Advocate for the petitioner.

Mr. Shailendra Nauriyal, Advocate for respondent no.2.

The petitioner before this Court is a defendant in a proceedings, before the Judge Family Court, Dehradun wherein he has instituted the proceedings of Suit No.57 of 2021, under the provisions of the Hindu Marriage Act, for seeking the dissolution of Marriage dated 10.07.2009, by invoking the provisions contained under Section 13 B of the Hindu Marriage Act.

There are certain contentions raised therein, but the only grievance which the petitioner has raised before this Court is that the statutory period of maturing the proceedings under Section 13 B may be waived of to be exhausted, for the purposes of deciding the aforesaid proceedings on merit, on the basis of the ratio, which has been propounded by the Hon'ble Apex Court in C.A. No.11158 of 2017; wherein it has been held that the statutory period, which is contemplated under Section 13(2)(a), is not of statutory in nature and its exhaustion may not be a condition precedent for deciding the application under Section 13 B. The respondent is represented by Mr. Shailendra Nauriyal, Advocate, he does not refute that contention. He submits that an application for waiver of the said statutory period as contemplated under Section 13(B)(2) has already been filed and is already pending consideration before the court alongwith principal proceedings under Section 13 B, which has not yet been decided, because the period has not lapsed.

The learned Principal Judge, Family Court, Dehradun is requested to decide the O.S. No.57 of 2021, without treating the embargo of Section 13(B)(2), as to be mandatory in nature in the light of the Hon'ble Apex Court judgment, as referred above. The decision on the same, if at all it is required on the pending application of the petitioner under Section 13(2)(a) and as well as the principal proceedings itself would be taken within a period of three months from the date of production of certified copy of this order.

Subject to the above observations, the writ petition stands disposed of.

(Sharad Kumar Sharma, J.) 05.03.2021 Arti